



Notification Waiver Determination

St Vincent's Private Hospitals Limited – St Vincent's Private Hospital Sydney

Acquisition	St Vincent's Private Hospitals Limited, a subsidiary of St Vincent's Health Australia Limited, applied for a notification waiver in respect of its proposed acquisition of the assets and operations of St Vincent's Private Hospital Sydney (the Hospital) from the Congregation of the Religious Sisters of Charity of Australia (the Congregation) and the Trustees of the Sisters of Charity of Australia in both its personal capacity and as trustee for the St Vincent's Private Hospital Sydney Trust (together, the Vendors), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	1 October 2026

Parties to the Acquisition	The acquirer, St Vincent's Private Hospitals Limited, is a not-for-profit operator of 9 private hospitals in Australia, with facilities in Victoria, New South Wales and Queensland. Its parent company, St Vincent's Health Australia Limited, is an incorporated not-for-profit organisation which has a number of wholly owned subsidiaries which operate public hospitals, private hospitals and/or aged care facilities in Australia. The target, the Hospital, is a private acute-care medical and surgical hospital located in Darlinghurst, Sydney and collocated with St Vincent's public hospital. The Hospital is a medical and surgical hospital that provides overnight and day only care across a broad spectrum of specialties, including cardiology, neurosurgery and orthopaedics. Pursuant to a delegated authority from the Vendors, St Vincent's Health Australia Limited has managed the Hospital under a management agreement since 2009.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. There will be no horizontal consolidation, removal of a competitor, or practical change to the daily management and operation of the Hospital post-Acquisition.

	In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC also considered the potential application of section 51ABD of the Act. However, the applicant submitted there is some uncertainty as to whether section 51ABD would apply given the nature of the relationship between the parties. Having regard to the particular circumstances, including the consequences of non-notification in reliance on section 51ABD if it was found not to apply, the ACCC considers it appropriate to make a determination on the basis that the acquisition provisions in the Act apply to the Acquisition. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
--	---

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**